

Court No. - 21

Case :- WRIT - C No. - 27784 of 2016

Petitioner :- Keshav Dev Tyagi And 4 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dharam Veer Singh, Sanjeev Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble V.K. Shukla, Acting Chief Justice

Hon'ble Yashwant Varma, J.

Keshav Dev Tyagi and four others are before this Court with a request to issue a writ in the nature of mandamus commanding the fifth respondent, the Executive Engineer, Electricity Distribution Division, Dakshinanchal Vidyut Vitran Nigam Ltd. Etmadpur, Agra for awarding electricity connection.

Prayer in question that has been so requested cannot be accorded by us for the simple reason that U.P. Electricity Supply Code, 2005 is a complete Code, wherein for getting a new electricity connection, a full fledged mechanism has been provided for, under Clause 4.4 of the Code, 2005. Time schedule in question has been provided under Clause 4.7 of the Code, 2005.

Once a full fledged mechanism is provided under Clause 4.4 read with Clause 4.7 of the 2005 Code and accepted position is that till today the application in question as is required to be filled has not at all been moved by the petitioners, in this view of the matter, we decline to come to the rescue of the petitioners in writ jurisdiction.

Consequently, the writ petition as it has been framed and drawn up is **dismissed** in presence of Sri Baleshwar Chaturvedi, counsel for the fifth respondent. The dismissal of the writ petition will not at all come in the way of the petitioners in pursuing the remedy as is available under the U.P. Electricity Supply Code, 2005.

Order Date :- 3.6.2016/Arun K. Singh